



Democracy in Action?: NIMBY as Impediment to Equitable Affordable Housing Siting

Corianne Payton Scally & J. Rosie Tighe

To cite this article: Corianne Payton Scally & J. Rosie Tighe (2015) Democracy in Action?: NIMBY as Impediment to Equitable Affordable Housing Siting, *Housing Studies*, 30:5, 749-769, DOI: [10.1080/02673037.2015.1013093](https://doi.org/10.1080/02673037.2015.1013093)

To link to this article: <https://doi.org/10.1080/02673037.2015.1013093>



Published online: 02 Apr 2015.



Submit your article to this journal [↗](#)



Article views: 915



View Crossmark data [↗](#)



Citing articles: 11 View citing articles [↗](#)

Democracy in Action?: NIMBY as Impediment to Equitable Affordable Housing Siting

CORIANNE PAYTON SCALLY*¹ & J. ROSIE TIGHE**

*HOUSERS, LLC, Albany, NY, USA, **Maxine Levin College of Urban Affairs, Cleveland State University, Cleveland, OH, USA

(Received March 2014; accepted January 2015)

ABSTRACT *Effective democracy requires participation. However, the history of urban politics, housing policy, and neighborhood revitalization has demonstrated that wealth and power often overshadow participation and community activism. Proponents of equity planning and advocacy planning in the USA have fought to include vulnerable, marginalized populations within planning decisions, yet there have been few examples of this in action. We apply Fainstein's principles of The Just City (Ithaca: Cornell University Press, 2010) to investigate the extent to which local opposition affects affordable housing development. In doing so, we question the extent to which housing policy and planning in the USA successfully achieve the goals of equity and fairness, or whether not-in-my-backyard forces operating within (and beyond) "democratic" planning processes override those principles in siting decisions. Our results suggest that community opposition is a considerable barrier to the efficient siting of affordable housing, and propose changes to local planning and implementation strategies in order to minimize opposition and produce more equitable outcomes.*

KEY WORDS: Affordable housing, NIMBY, democracy, equity

Introduction

Effective democracy requires participation (Fishkin, 1997; Fung, 2009; Verba & Nie, 1972). However, the history of urban politics, housing policy, and neighborhood revitalization in the USA has demonstrated that wealth and power often overshadow participation and community activism, producing unjust outcomes. In the case of affordable housing development, public participation has become institutionalized and narrowly interpreted within guidelines for national funding to state and local governments for affordable housing and community development activities. Such national guidelines require only a small round of orchestrated public hearings, the collection of written testimonies, and written responses

Correspondence Address: J. Rosie Tighe, Maxine Levin College of Urban Affairs, Cleveland State University, 1212 Euclid Ave, Cleveland, OH, 44115, USA. Fax: +1 216 687 5398; Tel.: +1 216 687 2164; Email: j.l.tighe@csuohio.edu

to submitted ideas or concerns. In addition, contemporary development processes emphasize collaboration and consensus, rather than a deeply representative process that includes all stakeholders, minimizing the opportunity for conflict between privileged and marginalized members of the community (Bezdek, 2009; Campbell, 1996; Fainstein, 2009; Goetz & Sidney, 1994). This lack of deep and meaningful participation by the public often results in a housing development process that extols the merits of democratic decision-making, yet seldom achieves greater participation or equitable outcomes.

In 2010, Susan Fainstein suggested a framework of action designed to move toward greater spatial access to opportunity and equitable outcomes. Fainstein's vision of *The Just City* establishes philosophical links between notions of procedural versus distributional justice and applies them to decision-making within urban environments. Drawing upon the work of political theorists such as John Rawls (1971, 2001) and Iris Marion Young (1999, 2002, 2011); geographers such as David Harvey (2003, 2010); and planning theorists such as Judith Innes (1995, 1996, 1998), Leonie Sandercock (1997, 2004), and John Friedmann (1971, 1973, 1987), Fainstein highlights three elements she views as critical to achieving a *The Just City*—democracy, equity, and diversity. Fainstein acknowledges, however, that significant tensions exist between these three elements, oftentimes requiring significant tradeoffs to take place when promoting one goal at the expense of others.

We focus on one of these key conflicts within Fainstein's *The Just City* framework—between democracy and equity—to investigate an area of urban development and planning rife with tension: the siting and development of affordable housing. In the US context, *affordable housing* refers to housing units constructed through public subsidies and tax incentives to produce below-market housing for people with low and moderate incomes, generally by ensuring they pay no more than 30 per cent of their household income toward housing costs.² We assess the extent to which affordable housing policy and planning efforts are able to truly achieve both democracy and equity, or whether “not-in-my-backyard” (NIMBY) forces operating within and beyond existing processes override the principle of equity in siting decisions. Specifically, we ask the following:

- (1) What types of affordable housing development projects are opposed?
- (2) Who opposes affordable housing development projects, how is opposition staged, and when within the development process does it occur?
- (3) How does community opposition affect project siting?
- (4) How can NIMBY successfully be overcome?

To answer these questions, we surveyed affordable housing developers—from the private, for-profit and charitable, not-for-profit sectors³—in New York State (NYS) in the USA to determine the extent to which community opposition thwarts equitable siting and development of affordable housing. We focus specifically on developers' perceptions of the planning and development process and outcomes, since they hold responsibility for proposing projects, identifying sites, applying for public funds, and moving affordable housing developments from concept to constructed units. This means they interact intimately with local planning agencies and the public, have the most direct experience encountering and navigating NIMBY opposition, and best understand the consequences of community opposition to their projects. In short, developers of affordable housing are those who implement national affordable housing policy goals in the midst of local planning and development contexts. How they do so is both important to our understanding of affordable housing siting decisions and our knowledge of how well the process yields equitable outcomes.

In addition to the developer survey, we also analyzed Low Income Housing Tax Credit (LIHTC) affordable rental housing developments that have been funded over a 5-year period in NYS. Since its establishment in 1987, the LIHTC program has become the largest funding mechanism in use in the USA to develop rental housing with below-market rents for low-income households (Schwartz, 2011). Those who invest equity in LIHTC projects—thus reducing a project's need for debt, lowering operating expenses, and increasing affordability—receive a credit on their federal taxes for the first 10 years of the property's operation.⁴ We conducted an analysis by zip code to determine the extent to which subsidized housing is being placed in predominately poor and minority areas across the state as an indirect measure of equity in the outcomes of local siting decisions. Through this mixed-methods approach, we investigate the extent to which community opposition—or the threat of such opposition—shapes housing siting decisions and equitable housing outcomes. This research advances our knowledge of how deeply NIMBY opposition to affordable housing affects the development process and, consequently, equitable housing outcomes. It also provides valuable insight into how public policies and planning initiatives can be structured to better achieve social justice goals.

This paper is presented in five sections. First, we review how the equity–democracy conflict has manifested over time and relates to political and planning theories about just processes and outcomes. Second, we review the literature around the controversial nature of siting affordable housing developments in the USA and internationally. Third, we describe our research methods and, fourth, present the results in answer to our research questions. Finally, we conclude with recommendations on how changes to local planning and development processes and implementation could create more democratic and equitable siting of affordable housing in our cities and regions.

The Conflict Between Democracy and Equity

As Fainstein (2010) discusses, democracy focuses on the process of decision-making on public issues, including the type and accessibility of the process of public participation. Equity, on the other hand, focuses on the distributional outcomes of material and nonmaterial benefits in a way that traditional planning does not. Participation is viewed as a lynchpin of successful democratic practice (Fishkin, 1997; Fung, 2009; Verba & Nie, 1972). However, it has been suggested that the traditional participatory mechanisms in the USA, and elsewhere, are inadequate to produce political and policy outcomes that equitably represent the needs and goals of all people (Arnstein, 1969; Innes & Booher, 2004; Verba & Nie, 1972).

As a field focused on shaping space and society through the built environment, urban planning has been particularly susceptible to these failures. During the 1950s and 1960s in the USA, many national planning programs, including the clearing of poor, minority communities through Urban Renewal and highway construction, destroyed vibrant urban neighborhoods despite strong neighborhood opposition (Gans, 1962; Hall, 1988; Jacobs, 1961). The inequitable outcomes of this and other top-down planning processes led to the development of new, people-focused planning theories—equity planning and advocacy planning. Proponents of equity and advocacy planning recognized that vulnerable and marginalized populations lack power to influence planning decisions that control and regulate land uses (Davidoff, 1965; Krumholz, 1982). Their insistence on more equitable outcomes, coupled with a growing emphasis on improving democratic participatory

processes, highlighted tensions still present in urban planning and development practices today.

Democracy: The Communicative Turn

Due to recognized shortfalls of traditional participatory democracy, many scholars and practitioners have pushed for alternative methods of participation in order to broaden participation or make it more effective in changing political outcomes. Young (1999, 2002, 2011), Fung (2009), and Purcell (2008) have all discussed ways to “deepen” democracy, empower a broader population with democratic participation, and make the system more meaningful and responsive to those who have historically been left out of policy decisions. Nearly all of these scholars agree that the standard mechanisms of participation—from voting to public meetings—exclude people of color, the poor, and other minority groups from pursuing their goals and needs. Instead, as Fung (2009, p. 12) states, “those who may need governmental assistance the least participate the most.”

Inspired by this political philosophy of deliberative democracy, as well as the contentious history of top-down planning in the USA and elsewhere, planning theorists advocated for a communicative turn in planning: beyond rational planning models based on expert insights, toward planning processes that promote more genuine forms of communication between those doing the planning and those affected by it (Forester, 1989, 1999; Friedmann, 1987; Healey, 1996; Innes & Booher, 2004). The goal of participation within the communicative planning approach is twofold—to provide the community with a mechanism to shape the future of their physical and social surroundings and to provide planners with a mechanism for defining the public interest.

However, when applying communicative and deliberative planning processes at the neighborhood level, regional needs—such as affordable housing or racial integration—can be overlooked. As Fainstein (2000, p. 460) points out, planners are “committed to equity and diversity, but there is little likelihood that such will be the outcome of stakeholder participation within relatively small municipalities.” More generally, “democratic procedures do not always product egalitarian outcomes, technical/scientific ones [such as those produced by urban planners] incorporate disguised normative biases, growth does not necessarily trickle down, and popular preferences may be misguided” (Fainstein, 2010, pp. 19–20). Thus, when seeking the public’s opinion during the planning process, it is important to do so broadly, so as not to confine public participation to a self-selected, homogeneous population who may act in self-interest rather than the public interest. Thus, without a specific framework designed to achieve social justice, communicative planning approaches on their own will likely fail to result in equitable outcomes.

Equity: Seeking Just Outcomes for the Marginalized

As a potential corrective to the inequitable pitfalls of communicative processes, Fainstein (2010, pp. 32–33) notes that

Although a commitment to democratic values for their own sake counters a call for benevolent despotism and leads us to wish for citizen input, we cannot deny out of hand that insulated decision making may produce more just outcomes than public

participation.... [And that] when reformers manage to hold state power, justice might be best achieved by allowing officeholders to make decisions.

Rather than focusing on improving processes of public participation, activist planners such as Paul Davidoff (1965) and Norman Krumholz (1982, 1999) took a substantive stake in the outcome of public decisions, seeking specific outcomes they ascertained to be more just on behalf of the poor and marginalized.

Davidoff and Krumholz emphasized increasing the transparency and accountability of public decision-making to a more diverse “public” in order to bring about more equitable outcomes. Doing so requires the cultivation of a plurality of voices and plans, and to affirm and advocate for those plans that align with their values. Davidoff (1965, p. 219) urged decision-makers to consider the associated socio-economic outcomes of “‘physical decisions’ such as location of schools and housing projects.” He encouraged planners and policy-makers to view social outcomes as intricately linked with physical outcomes, and to take sides. Krumholz (1999, p. 163) similarly favored policies and plans focused on the needs of existing residents “who have few, if any, choices,” and thought this best accomplished by creating jobs, bringing revenues into the city, improving services to low-income neighborhoods, and creating and preserving quality affordable housing, among others.

These models of advocacy planning (Davidoff) and equity planning (Krumholz) led to decision-making based on maximizing agreed-upon goals for public policy and planning practice that they viewed as most equitable, rather than improved participatory processes. Research detailing these decision-making processes (Chakalis *et al.*, 2002; Keating & Krumholz, 1991; Keating *et al.*, 1995; Krumholz, 1982, 1999) explores how equitable policies were put into action to great success. Yet these instances remain the exception rather than the rule (Metzger, 1996), with few local decision-makers basing policies and processes on promoting equitable outcomes in planning and development.

Siting Affordable Housing

The siting of affordable housing is a particularly contentious issue across the globe. Established residents, particularly property owners, are often on the lookout for any changes in their neighbors or neighboring land uses that might negatively impact property values, and affordable housing is viewed as a threat. The threat is perceived not only in terms of personal assets and finances, but also to school capacity and funding, public safety, and other local services and amenities (Davison *et al.*, 2013; Dear, 1992; Koebel *et al.*, 2004; Stover *et al.*, 1994). Some of these perceptions are due to the property tax concessions commonly given to affordable housing developers that neighbors fear will not cover the cost of serving new developments with public services (Scally & Koenig, 2012). Some of it also stems from fear of diversity and community change (Dear, 1992; Gurney, 1999; Pendall, 1999; Scally & Koenig, 2012; Tighe, 2012). Whatever the motivation, community opposition to affordable housing development can take many forms and yield a variety of results, and planning tools and processes can be used to either thwart or facilitate such opposition.

The first line of potential opposition is local land use regulations and zoning ordinances that determine how land can be used, and the size and characteristics of the structures that may be built on it. In the USA, residential zones range from detached single-family homes

to increasingly denser zones of attached homes and multi-unit apartments. Since denser development generally requires less land and costs less per unit to build, it is therefore naturally more affordable. One clear means to making affordable housing difficult to develop is to create zones for low-density single-family homes that require large lots in order to build (Pendall, 2000). These types of “exclusionary zoning” practices force developers to seek an exception to allowable land uses by applying for a zoning variance (Field, 1997; Koebel *et al.*, 2004; Tighe, 2011). Such variances often require approval by a Zoning Board of Appeals made up of local citizens who hold public hearings to consider developer requests, a process that can be quite contentious (Cowan, 2006).

Many countries and cities in the USA, Canada, Europe, Australia, and even China, have experimented with reversing this trend by promoting “inclusionary housing,” defined as “a program, regulation, or law that requires or provides incentives to private developers to incorporate affordable or social housing as part of market-driven developments...” (Calavita & Mallach, 2010, p. 1). The focus of inclusionary housing is on achieving more equitable outcomes and social returns than the profit-maximizing market would promote, although many intervening (and at times, undemocratic) factors can influence these outcomes, including NIMBY opposition (Calavita & Mallach, 2010; Davison *et al.*, 2013). A different strategy has been promoted through England’s new localism agenda: giving communities more democratic control over planning, siting, and developing new social housing, although the results in terms of equitable outcomes have been questionable (Gallent & Robinson, 2012; Matthews *et al.*, 2014; Sturzaker, 2011). Such programs, it appears, take some steps toward cultivating democratic processes with equitable outcomes in affordable housing development, but still falter.

Even when zoning changes are not necessary, affordable housing requires a riskier development process than market rate housing. As Mallach (2009, p. 80) notes, “affordable housing projects...are often subject to more scrutiny...and operate under severe costs constraints” compared to luxury developments that can easily finance required changes and additional “carrying costs on the land while pursuing time-consuming...review processes.” This added project vulnerability gives communities more time and diverse opportunities to stage their opposition (Davison *et al.*, 2013). For example, in the USA developers often must purchase the rights to develop at a particular site before seeking or being awarded funding through various subsidy sources, none of which they are guaranteed to receive, but most or all of which they need to make the project financially viable. Furthermore, some funding applications also require the support or approval of the local government that has jurisdiction over the site location before the project can be considered for funding. Such approval might require an ordinance adopted by the city council, a body of elected officials with their own interests and fears added to those of their constituents. It might also require some sort of tax concession to reduce the project’s bottom line operating costs in pursuit of affordable rents—yet another decision point that can be formally and informally contested. Once the project passes local approval and receives funding, it still needs to obtain local building permits, which may include meeting design standards, overcoming infrastructure restrictions, and many other complicated issues that must be resolved before construction can start.

In the end, community opposition at any stage in the development process can cause delays, force changes, increase costs, and undermine equitable siting decisions (Galster *et al.*, 2003; Gibson, 2005; Nguyen *et al.*, 2013; Scally, 2013; Tighe, 2011, 2012). Developments can be pushed into already poor areas where there is less political strength to oppose them

(Schively, 2007), or developers may pre-emptively choose poor areas as communities least likely to oppose their plans (Buki, 2002; Estes, 2007; Rohe & Freeman, 2001). Since affordable housing development involves such a delicate process, even a slight delay can sink a project. When opposition succeeds, it limits the effectiveness of public policies driving the development of affordable housing, hindering access to opportunity for moderate- and low-income families (Advisory Commission on Regulatory Barriers to Affordable Housing, 1991; Pendall, 1999).

Approach

We surveyed affordable housing developers who work in NYS to determine how widespread community opposition is, what the real effects of opposition are, and the extent to which opposition thwarts the equitable siting of affordable housing. We also analyzed all of the LIHTC housing that has been developed between 2006 and 2011 to determine the extent to which subsidized housing is being placed in predominately poor and minority areas across the state. This mixed-methods approach seeks to capture information on how community opposition directly (during and after siting decisions are made) and indirectly (that developers may make citing decisions in order to avoid potential opposition) affects whether or not development projects proceed, where they are located, and what other consequences NIMBY opposition may have on a project.

NYS was selected for this survey for several reasons. First, NYS has a history of progressive housing policy and programming which has cultivated a large, diverse network of developers operating throughout the state. Coupled with its large population (third largest in the nation) and diverse geographic territory, NYS ranges from large, dense urban communities to those more rural in nature, many with active affordable housing developers. This enables us to explore opposition in diverse development environments. Second, unlike some other large states, such as California and Illinois, NYS has no mandatory or voluntary inclusionary housing requirements for its municipalities,⁵ meaning developers have no institutionalized state support in combating local opposition, which could serve to dampen (or at least counter) oppositional efforts. Finally, several NYS communities have well-publicized histories of opposition and inequitable siting of affordable housing, leading to high-profile, prolonged legal battles. This includes the controversial, court-ordered desegregation of public housing in the city of Yonkers (USA v. City of Yonkers *et al.*, 1985), where inequitable planning practices were specifically implicated as contributing to racial segregation through affordable housing siting decisions (Feld, 1986, 1989). In sum, we believe that this diverse geography and unique history makes NYS a good testing ground for a study of local opposition to affordable housing. While not generalizable to all states, or the USA as a whole, the findings are useful for understanding localized processes and outcomes of opposition in diverse types of communities at a level of depth never before explored in the USA.

Our electronic survey was distributed through partnership with three coalitions and associations whose members develop affordable housing in NYS. Two coalitions had a nonprofit membership base: the Neighborhood Preservation Coalition of New York State (NPC), and the New York State Rural Housing Coalition (RHC). The members of NPC include nonprofits funded by NYS to serve urban neighborhoods, and many of these (approximately 60 members) develop affordable housing as one of a variety of organizational activities. The members of RHC are similarly funded by NYS, but to serve

rural areas in the state; approximately 60 members have developed or currently develop affordable housing. Finally, the New York State Association for Affordable Housing (NYSFAH) is a professional association of primarily for-profit businesses engaged in affordable housing activities, with approximately 30 members who are active developers of such housing. The associations forwarded our request for participation directly to their members, with 150 members receiving an initial invitation and survey link, followed by two reminders within a month timeframe. Of those 150 developers, we received 74 completed surveys for a response rate of 50 per cent.

We asked a variety of questions about developer experience with community opposition to their affordable housing development projects. Questionnaire design and question wording were based upon previous work that defined, measured, and identified what factors comprise NIMBY opposition (Nguyen *et al.*, 2013; Scally, 2013; Tighe, 2010a), how affordable housing outcomes are affected by community opposition (Pendall, 1999; Tighe, 2011), and how the community outreach process surrounding housing development is crafted (Dear, 1992; Iglesias 2002; Lake, 1996).

A draft survey instrument was reviewed by leaders of each state association, with helpful feedback received from each to improve the reliability and validity of developer responses. The survey guided those developers that had experienced opposition through a series of detailed questions, including who opposed their projects, how opposition was organized, when during the project process opposition occurred, what the effect of opposition was on the project, and how developers responded to the opposition.

In order to bolster our survey data with information regarding the spatial distribution of affordable housing in NYS, we analyzed the LIHTC project data collected annually by the U.S. Department of Housing and Urban Development. We compiled the LIHTC projects put into service during the most recent 5-year period available at the time of writing (2006–2011). The 864 developments consist of 75 343 units, of which 35 467 (47%) are low-income units. We then examined zip code data from the 2010 Decennial Census to determine whether the LIHTC developments put into service during this period were disproportionately located in either low-income or minority zip codes using the variables on median household income and the racial category of percentage “white alone”. We ran four correlations—one between white alone percentage and number of total project units, one between white-alone percentage and number of low-income project units, one between median household income and number of total project units, and one between median household income and number of low-income units. The results of this analysis can be found in the results section that follows.

Beyond the research limitations already noted above, there is one other key limitation. While we have made the case for the importance of developers in building affordable housing today, and of their experiences of community opposition in influencing the siting of such housing, there are many other players within the development process. Other important perspectives on community opposition and democratic processes include those of local officials, planning staff, and community stakeholders. Specifically, without surveying or speaking directly to planners, it is difficult to present a complete picture on how planning processes directly or indirectly affect affordable housing siting in just or unjust ways. For this study, we chose to only survey developers in order to maintain confidentiality within a very small, tightly knit field of research subjects, as well as a small subset of jurisdictions where affordable housing development is taking place. From prior experience conducting interviews with both developers and planners in NYS, we knew

talking with multiple players within the same jurisdiction about such a contentious issue was detrimental to response rates. We present our results below with this caveat, and acknowledge this as an area for future research, particularly in a larger project where the risk for respondent identification will be lower.

Results

Seventy-four not-for-profit and for-profit developers responded to our survey. Out of these respondents, 70 per cent (52 developers) have experienced local community opposition to their affordable housing development projects in NYS. Six organizations (12 per cent) state that they experience community opposition “almost always”, 16 (31 per cent) experience opposition “frequently”, 20 (39 per cent) experience it “occasionally,” and 10 (19 per cent) “seldom” experience opposition. The following analysis considers only responses from these organizations that have experienced any opposition.⁶ This small sample size limits our analysis to descriptive statistics only, but still sheds light on developer experiences in communities throughout NYS that may describe conditions in other similar states and communities across the USA, as well as within countries with similar housing development environments.

Those experiencing opposition share some general characteristics. Eighty per cent include affordable housing as part of their organizational mission or business statement. The majority (67 per cent) devote at least half of their business activity to affordable housing development and management. Most develop housing for families (98 per cent), the elderly (77 per cent), and people with disabilities (64 per cent). Finally, the majority (60 per cent) focus primarily on rental housing.

Important differences between respondents include tax status and unit types developed. Seventy-seven per cent of those experiencing opposition were nonprofit agencies, while 23 per cent were for-profit companies. In addition, while the majority (62 per cent) of respondents experiencing opposition were focused on rental housing development, one out of every five respondents focused on developing owned units, and another 16 per cent developed both rental and owned units equally. The sample size is too small to explore correlations and causal relationships, but these could be fruitful areas for further research.

Opposition by Project Location and Type

Our first research question of interest is: what types of affordable housing development projects are most likely to experience community opposition? First, we asked developers in what type of community they experienced the strongest opposition. Forty-six per cent responded that they receive the most opposition in urban communities, with 27 per cent each indicating strongest opposition in suburban and rural communities.⁷ While this seems counterintuitive to the literature indicating highest opposition is present in the suburbs, this could be explained by the service areas of respondents being primarily in urban areas. We did not collect this information for all respondents (only those experiencing opposition), so cannot definitively say this is the case, but based on the membership of the associations distributing the surveys, this is a feasible explanation.

Second, we asked developers what types of projects were opposed based on the tenure of the units and new construction versus rehabilitation of existing properties. Only 10 per cent stated they experience opposition to new construction almost always, while 12 per cent

seldom do. However, not surprisingly, those experiencing opposition see greater frequency when developing rental housing versus units for homeownership: only five developers stated that they frequently experience opposition to owned housing (zero said almost always) while 54 per cent of developers stated that they frequently or almost always experience opposition to rental housing.

The Who, How, and When of Opposition

The second research question we ask is: who opposes affordable housing development projects, how is opposition staged, and when within the development process does it occur? The most common source of opposition is residents, either acting alone in an unorganized fashion or through organized resident groups, with 39 and 40 per cent of respondents, respectively, indicating these as the primary sources of opposition to their development projects. Organized groups include neighborhood associations and community-wide coalitions. However, despite the overwhelming role of residents in leading the opposition, almost one out of every five (19 per cent) developers experiencing opposition suggested that a public agency or public official was the primary impetus for opposition. Finally, only 2 per cent pointed to a nonprofit agency or other nonpublic agency as presenting the most opposition.

We asked developers what various types of reasons were cited by the community for opposing their development projects. As highlighted in Figure 1, the majority (64 per cent) of developers indicated safety and crime concerns of paramount importance to communities, followed by tax burden concerns (50 per cent), traffic (49 per cent), schools (46 per cent), environmental impact (44 per cent), and the population being served by the development project (22 per cent). Open-ended reasons noted by developers indicate that opposition is strongest when the proposal involves low-income or poor people moving near their existing residences. Finally, community perspectives that too much subsidized housing already existed in the area, displeasure with the proposed site location, and concerns about their property values declining were cited as common justifications for opposition.

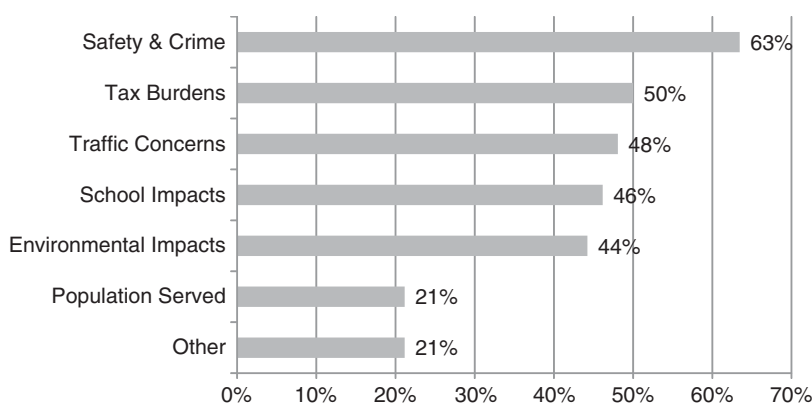


Figure 1. Most common reasons for community opposition.

Source: Authors' survey.

Developers were asked what types of methods were ever used in opposing their development projects (see [Figure 2](#)). The majority (52 per cent) indicated that news media, such as newspaper ads and letters to the editor, were commonly used methods of opposition. This was followed closely by information campaigns (46 per cent) utilizing more door-to-door techniques such as distributing flyers and petitions, and posting yard signs. Internet-based opposition, such as web-based message boards, forums, or social media, were also quite common methods, with 46 per cent of developers indicating their use. One out of four respondents indicated that formal legal challenges have been made against their development projects. Twelve developers (23 per cent) experience organized protests, such as picketing at the construction site and the same number mentioned public opposition at formal public hearings. Finally, six developers (12 per cent) indicated that neighbors had contacted local elected officials to stop or change the development.

We asked developers to indicate all phases during the development process when they tended to experience community opposition, listing answer options in chronological order beginning with “before site selection” and ending with “during ongoing management (if rental).” As [Figure 3](#) shows, an overwhelming majority (87 per cent) stated that they commonly experienced opposition after they have selected their project site, but before gaining whatever local project approvals may be needed, such as zoning changes, building permits, and the like. Many developers also experienced opposition after local approval but before funding applications are submitted (42 per cent), after funding submission but before funding approval (32 per cent), and after funding approval but before beginning construction (39 per cent). Opposition at the very beginning and very end of process was less common, but still present, with 16 per cent of developers experiencing opposition even before a project site was selected, 15 per cent experiencing opposition during actual construction, and 10 per cent and 6 per cent, respectively, experiencing opposition during lease-up or sale of units, and ongoing management of rental units.

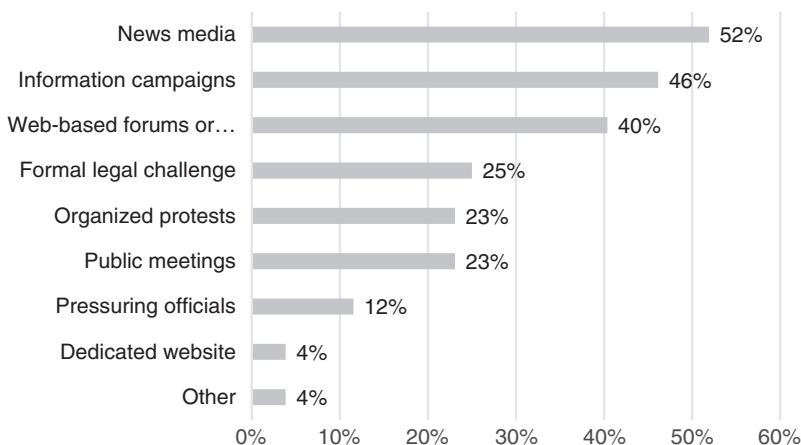


Figure 2. Most frequent outlets for opposition.
Source: Authors' survey.

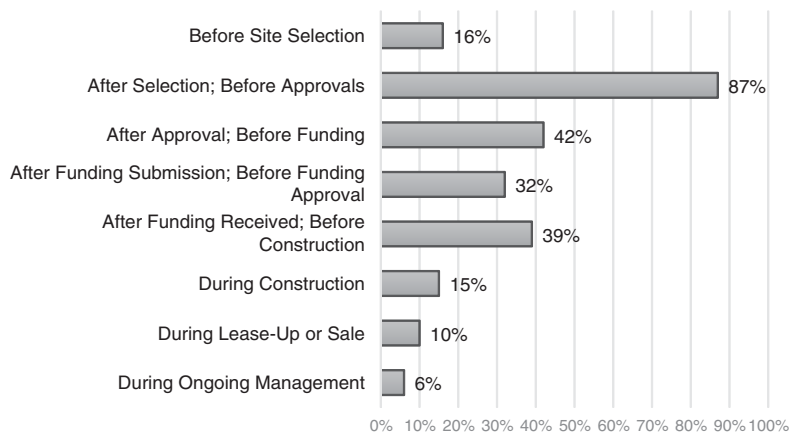


Figure 3. Percentage of developers indicating opposition experienced, by project stage.
Source: Authors' survey.

The Effects of Opposition

Our third research question of interest was: how does community opposition affect project siting and characteristics? We asked developers separately about negative effects and positive effects.

When asked about what the negative effects of community opposition have been on the development process or the overall outcome of their projects, only 12 per cent of developers said they did not perceive any negative effects of the opposition they have encountered. Those who did experience negative effects pointed to delays as the most common problem they encounter: 62 per cent noted overall construction delays and 10 per cent indicated delays in leasing or selling units (see [Figure 4](#)). Almost one out of every

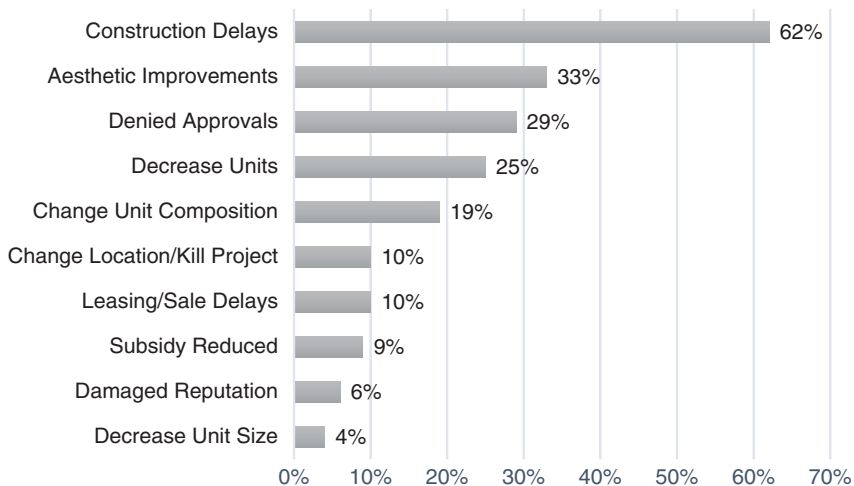


Figure 4. Most frequent negative outcomes of opposition.
Source: Authors' survey.

three developers (29 per cent) were denied the building permits or zoning changes needed to develop their proposed project. In terms of the physical characteristics of the development, one out of every three developers had to make aesthetic improvements at additional cost. Twenty-five per cent had to reduce the number of units in the project, 19 per cent had to change the unit composition (e.g., number of units of different sizes), and 4 per cent had to reduce the size of their units. Five developers reported that they had to change the location of the project or cancel the development entirely. In terms of funding, in addition to experiencing increased costs associated with delays and other required changes, 8 per cent of developers facing opposition experienced a reduction in their project subsidy levels. While specific reasons were not provided by all developers, some suggested that they lost funding as a result of delays in permitting or official approval for the project. Legal actions were also noted as driving up project costs, forcing developers to divert project funding to secure legal counsel. Three respondents mentioned damage to their reputation amidst opposition and negative media accounts of the plans, the developer, or affordable housing in general.

When asked whether there have been positive effects, exactly half of the developers who have experienced community opposition said there have been no perceived positive effects. However, 37 per cent noted that improvements in local public opinion of affordable housing resulted from their engagement with the community. A very small proportion of developers (4 per cent, each) actually were able to increase the number of units in their development or receive funding increases to pay for negotiated project changes. Finally, a few developers mentioned enhanced community engagement and positive media attention as positive developments emerging from contentious siting disputes.

Overcoming NIMBY

Our fourth and final question of interest was: how can NIMBY successfully be overcome? To this end, we asked developers what strategies they have ever used to address local opposition, as well as which ones they used most frequently, and which ones they have found most effective in countering opposition. Their answers are summarized in [Table 1](#). The most common strategy that developers use, by far, is informal public information sessions, with almost all respondents utilizing this technique. Formal public hearings are strategically used to combat NIMBY by two out of every three developers. More than a

Table 1. Most used versus most effective developer strategy for overcoming NIMBY

Strategy	Ever used (%)	Use frequently (%)	Most effective (%)
Informal public information sessions	87	37	29
Formal public hearings	66	12	12
Informal meetings with community leaders	33	42	42
Formal legal challenges	27	6	6
Resident surveys, focus groups, interviews	25	0	0
Social media	23	0	0
Other	4	6	12

Source: Authors' survey.

third of developers indicated they also hold informal meetings with community leaders, and about a quarter of respondents also conduct surveys, focus groups, or interviews with residents. Twenty-three per cent of respondents utilize social media to interact with the public, and a surprising 27 per cent have engaged in formal legal measures during disputes—with 3 per cent responding that formal legal challenges are the most common strategy they employ when faced with community opposition. Despite nearly all of our respondents stating that they participate in formal public hearings, only 12 per cent stated that these are the most effective techniques for combating local opposition. Instead, developers state that more informal techniques—including meetings with community leaders (42 per cent) and the public in general (29 per cent)—are the most effective way to engage with the public and mitigate opposition.

Another way of overcoming NIMBY may be to avoid it entirely. For this reason, developers might be choosing locations where they are less likely to experience opposition, namely in predominately poor, minority communities. Through our analysis of LIHTC units, we find that there is no statistically significant correlation between the location of affordable housing developments and the median household income of the surrounding zip code. This result held for both all units ($-.05$) and low-income only units ($-.08$). We did, however, find a moderate correlation between the location of these developments and the racial composition of the surrounding zip code, both for all units ($-.43$) and low-income units ($-.45$), indicating that LIHTC developments are being sited disproportionately in nonwhite areas. This suggests that developers may be choosing to site affordable housing in neighborhoods that offer less resistance—either in more peripheral areas with lower populations or in neighborhoods that lack the political and social capital to present a coordinated resistance (Buki, 2002; Estes, 2007).

Discussion

Our survey on the processes and outcomes of community opposition to the siting of affordable housing developments reveals important evidence on the real tensions between the goals of democracy and equity. The majority of developers in NYS who build affordable housing face some degree of community opposition to their developments, concentrated at the stage in the process when they must seek local approval of their request to build, but also occurring at other stages. To address opposition, formal participation processes are helpful to some developers, but informal processes seem more effective. In terms of outcomes, it is clear that regulatory barriers continue to provide obstacles to the equitable siting of affordable housing. A lack of information and understanding by the community about the goals and benefits of developing affordable housing gives rise to fear about unknown future neighbors and neighborhood effects, further fueling active opposition. Some opposition can be effectively countered through informing and educating community residents and officials. However, negative results are more common—from significant compromises and increased costs to lost funding, lawsuits, and cancelled projects.

Promoting Democratic Principles

According to our findings, affordable housing siting decisions are happening in an undemocratic manner that privileges the voices (and fears) of existing residents. Most

opposition comes from individual and organized current residents. Some of this opposition is vocalized within standard public meetings required for requesting changes to existing zoning and land use designations that are often intentionally exclusionary and inequitable in nature. Much opposition, however, takes place outside of traditional democratic processes, and represents only the voices of those residents privileged enough to already live in those communities where developers are siting affordable housing developments. Whether broadcasting their concerns via traditional and electronic media, or actively picketing construction sites, these opponents taint developer reputations and cause costly, and sometimes fatal, project delays. The high frequency of legal challenges by developers, and of successful ones, proves that opposition often operates through processes ultimately deemed illegitimate by upholders of the law.

Some developers are able to answer community questions and dissipate fears within traditional planning processes, despite considerable research (Davidoff, 1965; Fainstein, 2000, 2010; Hillier & van Looij, 1997; Hoch, 1993; Marcuse *et al.*, 2009) that points to the exclusion of many voices—particularly poor and minority voices—from formal public meetings. Many developers, however, find their own informal processes of meeting, educating, and negotiating with residents and officials much more effective in overcoming opposition (Davison *et al.*, 2013). While we have no evidence that these are more democratic—representing a more inclusive group of stakeholders—than formal public meetings, this suggests that some inadequacies within traditional planning processes may be addressed through other methods of participation.

Promoting Equitable Outcomes

Siting affordable housing developments in a way that expands equitable residential opportunities for low-income, minority households remains difficult to achieve in the face of community opposition. One key indicator of continuing difficulties is the fact that the most conflict-ridden stage of the siting process is receiving required local project approvals, such as zoning changes, building permits, and the like. It is clear that steep regulatory barriers continue to exist at the local level, many of which are often intentionally fashioned to prevent the equitable siting of affordable housing. Such barriers—including large-lot, low-density zoning—force developers of affordable housing into an oppositional stance with the community before a project is even conceived.

Another key indicator is what motivates communities to oppose affordable housing: fear that new residents will threaten community safety, and create a variety of nuisances, from increased traffic, to overcrowded schools, to environmental degradation. Acting on this fear by staging opposition to proposed projects can drive up development costs and alert developers that future proposals to site affordable housing within the opposed community are not welcome. Indeed, our analysis of the siting of LIHTC units in NYS since 2006 suggests that developers may either preemptively avoid siting affordable housing within certain communities—particularly those with a majority white population—or encounter less resistance in minority neighborhoods. Developers may desire a more equitable distribution of affordable housing opportunities for marginalized and vulnerable populations within economically and socially diverse communities, but may fail to achieve this due to either threatened or extant opposition of existing, privileged residents.

The necessity of developers to acquiesce to opposition by altering their development plans is another inequitable outcome of community opposition (Dear, 1991, 1992; Iglesias,

2002; Koebel *et al.*, 2004; Stein, 1992; Stover *et al.*, 1994). As others have found, these changes increase the cost of development, reduce the number of units, and generally decrease affordability—undermining public policy and planning initiatives seeking a more equitable distribution of affordable housing developments (Heudorfer, 2002; Stover *et al.*, 1994). Furthermore, our study shows a significant drop-off in opposition after the development is completed. This result bolsters previous research (Collins, 2003; Massey *et al.*, 2013; Stover *et al.*, 1994; Tighe, 2005, 2010a) that suggests opposition to affordable housing is based more on fear of change or the unknown than the realities of affordable housing. Once the units are developed, and those realities are actualized, opposition decreases. In these cases, changes to the development that limits equity is simply responding to unsubstantiated fears and prejudices that may eventually subside on their own.

Finally, while exact cost calculations are beyond the scope of this study, it is clear that a considerable amount of money is spent both opposing and countering opposition to affordable housing development projects. Communities spend money objecting to proposed projects, and developers spend money in countering opposition—including staff time, legal fees, and interest payments on property and construction financing—and experience financial losses—including lost subsidies and increased project costs due to required changes. This may be an effective method of getting affordable housing developments sited and built in some cases, but it is certainly economically inefficient. Instead, such money could be spent building more housing, deepening the subsidy levels for affordable units, or other project and community improvements and amenities.

Conclusion: Improving Democracy and Equity in Affordable Housing Siting Decisions

These results suggest areas where local government policy-makers and planners could pursue goals of both deeper democracy within the process and greater equity of outcomes on behalf of marginalized and underrepresented voices. However, there are some critical issues that need to be addressed in order to promote such advancements in the siting of affordable housing. Specifically, planners and policy-makers need to anticipate opposition, better understand public perceptions, develop more effective processes for countering opposition and changing perceptions, and recommit themselves to equitable outcomes. We discuss each of these points in turn below.

There is significant evidence about the presence of opposition to the siting of affordable housing (Davison *et al.*, 2013; Dear, 1992; Goetz & Sidney, 1994; Koebel *et al.*, 2004; Pendall, 1999; Stover *et al.*, 1994). Our research provides new details on when opposition is most likely to occur during the development process. This suggests that planners can better anticipate it and understand it in order to respond effectively. Opposition to housing development should no longer “come as a surprise,” as it did to one Canadian town in a recent study (Holden & Sidhu 2014, p. 34). Planners (and developers) need to be more intuitive in learning from past experiences, knowing their communities, and determining what information to present and how to do it in a way that sways opponents (Schively, 2007).

Unfortunately having a better understanding of public perceptions does not automatically lead to suggestions on how to change them. While there is a growing body of research unpacking public perceptions of affordable housing (Goetz, 2008; Nguyen *et al.*, 2013;

Scally, 2013; Tighe 2010a, 2012), and another extensive body of research looking at effective planning practices for managing conflict and promoting diversity (Forester, 1989, 1999; Friedmann, 1987; Healey, 1996), research on how to successfully change perceptions through democratic, deliberative planning practices is still thin (Davison *et al.*, 2013; Scally, 2013; Schively, 2007). More research is still needed on whether or not various planning processes, such as including community stakeholders in creating inclusionary housing requirements, or in developing design standards for multifamily housing developments, can effectively shift public perceptions around affordable housing siting decisions. There still seems to be a disconnect between traditional planning and development processes and the most effective and efficient mechanisms for working with communities to promote affordable housing. Public hearings are hardly effective at overcoming virulent NIMBY opposition. Instead, our research suggests that supplying appropriate information, informally engaging with the public, and building trust may lead to better siting outcomes. If officially adopted and promulgated, these other formats may promote greater deliberation within a less contentious (and litigious) environment, save money, and encourage more developers to consider building affordable housing. This is an important area for further research.

In the end, democratic processes may still come into conflict with equity goals, jeopardizing the achievement of Fainstein's (2010) *The Just City*. It is times like these when planners are challenged by the legacies of Davidoff and Krumholz to promote the public interest and work toward specific equitable outcomes on behalf of the marginalized. While we do not propose that officials or developers ignore valid concerns expressed by communities that oppose affordable housing (Ruming, 2014), we believe that such concerns should be balanced with the needs of those who will benefit from affordable housing. In the USA, planners have a professional and ethical obligation to:

expand choice and opportunity for all persons, recognizing a special responsibility to plan for the needs of the disadvantaged and to promote racial and economic integration . . . [Planners] shall urge the alteration of policies, institutions, and decisions that oppose such needs (American Institute of Certified Planners Code of Ethics and Professional Conduct).⁸

This means considering and presenting affordable housing developments holistically to the public, including a comprehensive analysis of potential outcomes from the perspective of all stakeholders, especially those currently marginalized by, and even totally absent from the community. Even if the process of siting affordable housing remains dominated by privileged, fearful residents, developers, planners, and elected officials can and should play an important role in countering such arguments and working toward more equitable outcomes.

Disclosure statement

No potential conflict of interest was reported by the authors.

Notes

¹ Email: corianne@housersllc.com.

- ² *Public housing*, on the other hand, refers to housing funded through the USA public housing program, and operated by local PHAs. While some PHAs also develop and manage *affordable housing* funded through other public subsidies and tax incentives, they are excluded from this present analysis given their unique and complex issues of hybridization (Nguyen *et al.*, 2012). This analysis focuses instead on how nonpublic entities (private and not-for-profit developers) experience public processes.
- ³ They can also exist within the public sector, including local PHAs, but these are excluded from this analysis as discussed in note 1 above.
- ⁴ Further details about the Low Income Housing Tax Credit can be found on the U.S. Department of Housing and Urban Development page at http://portal.hud.gov/hudportal/HUD?src=/program_offices/comm_planning/affordablehousing/training/web/lihtc/basics.
- ⁵ The exception is the Long Island Workforce Housing Act passed in 2008 that places some mandatory requirements on developers seeking to build a project of five units or more in Nassau or Suffolk Counties only.
- ⁶ Unfortunately, the sample is too small to rigorously analyze any differences between those respondents who experienced opposition versus those who did not. We thus restrict our analysis to the large majority of respondents indicating they have experienced local opposition.
- ⁷ In NYS, place definitions are typically as follows: “urban” is an incorporated city, “suburban” is an incorporated town or village, and “rural” as an unincorporated area.
- ⁸ <https://www.planning.org/ethics/ethicscode.htm>.

References

- Advisory Commission on Regulatory Barriers to Affordable Housing (1991) *“Not in My Back Yard”: Removing Barriers to Affordable Housing* (Washington, DC: Department of Housing and Urban Development).
- Arnstein, S. R. (1969) A ladder of citizen participation, *Journal of the American Institute of Planners*, 35(4), pp. 216–224. doi: [10.1080/01944366908977225](https://doi.org/10.1080/01944366908977225).
- Bezdek, B. L. (2009) Putting community equity in community development: Resident equity participation in Urban redevelopment, in: R. Malloy & N. Davidson (Eds) *Affordable Housing and Public-Private Partnerships*, pp. 93–128 (Farnham: Ashgate).
- Buki, C. (2002) *Affordable Housing and Growth Management and Sprawl* (Washington, DC: Millennial Housing Commission).
- Calavita, N. & Mallach, A. (2010) *Inclusionary Housing in International Perspective: Affordable Housing, Social Inclusion, and Land Value Recapture* (Cambridge, MA: Lincoln Institute of Land Policy).
- Campbell, S. (1996) Green cities, growing cities, just cities?: Urban planning and the contradictions of sustainable development, *Journal of the American Planning Association*, 62(3), pp. 296–312. doi: [10.1080/01944369608975696](https://doi.org/10.1080/01944369608975696).
- Chakalis, A., Keating, D., Krumholz, N. & Wieland, A. M. (2002) A century of planning in Cleveland, *Journal of Planning History*, 1(1), pp. 79–93. doi: [10.1177/153851320200100105](https://doi.org/10.1177/153851320200100105).
- Collins, M. (2003) *Responses of the Area Residents Adjacent to a Newly Constructed Affordable Multi-Family Housing Development* (Burlington: Vermont Housing Finance Agency).
- Cowan, S. M. (2006) Anti-snob land use laws, suburban exclusion, and housing opportunity, *Journal of Urban Affairs*, 28(3), pp. 295–313. doi: [10.1111/j.1469-9906.2006.00293.x](https://doi.org/10.1111/j.1469-9906.2006.00293.x).
- Davidoff, P. (1965) Advocacy and pluralism in planning, *Journal of the American Institute of Planners*, 31(4), pp. 331–338. doi: [10.1080/01944366508978187](https://doi.org/10.1080/01944366508978187).
- Davison, G., Legacy, C., Liu, E., Han, H., Phibbs, P., van den Nouwelant, R., Darcy, M. & Piracha, A. (2013) *Understanding and Addressing Community Opposition to Affordable Housing Development* (Melbourne: Australian Housing and Urban Research Institute).
- Dear, M. (1991) *Gaining Community Acceptance* (Princeton, NJ: The Robert Wood Johnson Foundation).
- Dear, M. (1992) Understanding and overcoming the NIMBY syndrome, *Journal of the American Planning Association*, 58(3), pp. 288–300. doi: [10.1080/01944369208975808](https://doi.org/10.1080/01944369208975808).
- Estes, C. (2007) *NCHC Housing Communication Manual* (Raleigh. Section V. http://www.nchousing.org/research-data/nchc_research_publications/nchc-housing-comm-manual/Overcoming%20the%20Challenges%20of%20NIMBYism.pdf North Carolina Housing Coalition).
- Fainstein, S. (2000) New directions in planning theory, *Urban Affairs Review*, 35(4), pp. 451–478. doi: [10.1177/10780870022184480](https://doi.org/10.1177/10780870022184480).

- Fainstein, S. (2009) Spatial justice and planning, *Spatial Justice*, (1). doi: <http://www.jssj.org>
- Fainstein, S. (2010) *The Just City* (Ithaca, NY: Cornell University Press).
- Feld, M. (1986) Planners guilty on two counts: The city of Yonkers case, *Journal of the American Planning Association*, 52(4), pp. 387–388. doi: [10.1080/01944368608977111](https://doi.org/10.1080/01944368608977111).
- Feld, M. (1989) The Yonkers case and its implications for the teaching and practice of planning, *Journal of Planning Education and Research*, 8(3), pp. 169–175. doi: [10.1177/0739456X8900800305](https://doi.org/10.1177/0739456X8900800305).
- Field, C. G. (1997) Building consensus for affordable housing, *Housing Policy Debate*, 8(4), pp. 801–832. doi: [10.1080/10511482.1997.9521279](https://doi.org/10.1080/10511482.1997.9521279).
- Fishkin, J. S. (1997) *The Voice of the People: Public Opinion and Democracy* (New Haven, CT: Yale University Press).
- Forester, J. (1989) *Planning in the Face of Power* (Berkeley, CA: University of California Press).
- Forester, J. (1999) *The Deliberative Practitioner: Encouraging Participatory Planning Processes* (Cambridge: MIT Press).
- Friedmann, J. (1971) The future of comprehensive urban planning: A critique, *Public Administration Review*, 31(3), pp. 315–326. doi: [10.2307/974890](https://doi.org/10.2307/974890).
- Friedmann, J. (1973) The spatial organization of power in the development of urban systems, *Development and Change*, 4(3), pp. 12–50. doi: [10.1111/j.1467-7660.1973.tb00643.x](https://doi.org/10.1111/j.1467-7660.1973.tb00643.x).
- Friedmann, J. (1987) *Planning in the Public Domain: From Knowledge to Action* (Princeton, NJ: Princeton University Press).
- Fung, A. (2009) *Empowered Participation: Reinventing Urban Democracy* (Princeton, NJ: Princeton University Press).
- Gallent, N. & Robinson, S. (2012) Community perspectives on localness and “priority” housing policies in rural England, *Housing Studies*, 27(3), pp. 360–380. doi: [10.1080/02673037.2012.651107](https://doi.org/10.1080/02673037.2012.651107).
- Galster, G., Tatian, P., Santiago, A., Petit, K. & Smith, R. (2003) *Why Not in My Backyard?* (New Brunswick: Center for Urban Policy Research, Rutgers University).
- Gans, H. (1962) *The Urban Villagers* (New York: The Free Press).
- Gibson, T. A. (2005) NIMBY and the civic good, *City and Community*, 4(4), pp. 381–401. doi: [10.1111/j.1540-6040.2005.00144.x](https://doi.org/10.1111/j.1540-6040.2005.00144.x).
- Goetz, E. G. (2008) Words matter: The importance of issue framing and the case of affordable housing, *Journal of the American Planning Association*, 74(2), pp. 222–229. doi: [10.1080/01944360802010251](https://doi.org/10.1080/01944360802010251).
- Goetz, E. G. & Sidney, M. (1994) Revenge of the property owners: Community development and the politics of property, *Journal of Urban Affairs*, 16(4), pp. 319–334. doi: [10.1111/j.1467-9906.1994.tb00333.x](https://doi.org/10.1111/j.1467-9906.1994.tb00333.x).
- Gurney, C. M. (1999) Lowering the drawbridge: A case study of analogy and metaphor in the social construction of home-ownership, *Urban Studies*, 36(10), pp. 1705–1722. doi: [10.1080/0042098992782](https://doi.org/10.1080/0042098992782).
- Hall, P. (1988) *Cities of Tomorrow: An Intellectual History of Urban Planning and Design in the Twentieth Century* (London: Basil Blackwell).
- Harvey, D. (2003) The right to the city, *International Journal of Urban and Regional Research*, 27(4), pp. 939–941. doi: [10.1111/j.0309-1317.2003.00492.x](https://doi.org/10.1111/j.0309-1317.2003.00492.x).
- Harvey, D. (2010) *Social Justice and the City*, Vol. 1 (Athens: University of Georgia Press).
- Healey, P. (1996) The communicative turn in planning theory and its implications for spatial strategy formations, *Environment and Planning B*, 23(2), pp. 217–234. doi: [10.1068/b230217](https://doi.org/10.1068/b230217).
- Heudorfer, B. (2002) *Taking the Initiative: A Guidebook on Creating Local Affordable Housing Strategies* (Boston, MA: Citizens Housing and Planning Association & The Massachusetts Housing Partnership).
- Hillier, J. & Van Looy, T. (1997) Who speaks for the poor? *International Planning Studies*, 2(1), pp. 7–25. doi: [10.1080/13563479708721666](https://doi.org/10.1080/13563479708721666).
- Hoch, C. (1993) Racism and planning, *Journal of the American Planning Association*, 59(4), pp. 451–460. doi: [10.1080/01944369308975899](https://doi.org/10.1080/01944369308975899).
- Holden, M. & Sidhu, T. (2014) *Getting to Groundbreaking: Residential Building Approval Processes in Metro Vancouver; Year 1: Focus on Townhouses* (Vancouver: Simon Fraser University Urban Studies Program).
- Iglesias, T. (2002) Managing local opposition to affordable housing: A new approach to NIMBY, *Journal of Affordable Housing*, 12(1), pp. 78–122.
- Innes, J. E. (1995) Planning theory’s emerging paradigm: Communicative action and interactive practice, *Journal of Planning Education and Research*, 14(3), pp. 183–189. doi: [10.1177/0739456X9501400307](https://doi.org/10.1177/0739456X9501400307).
- Innes, J. E. (1996) Planning through consensus building: A new view of the comprehensive planning ideal, *Journal of the American Planning Association*, 62(4), pp. 460–472. doi: [10.1080/01944369608975712](https://doi.org/10.1080/01944369608975712).

- Innes, J. E. (1998) Information in communicative planning, *Journal of the American Planning Association*, 64(1), pp. 52–63. doi: [10.1080/01944369808975956](https://doi.org/10.1080/01944369808975956).
- Innes, J. E. & Booher, D. E. (2004) Reframing public participation: Strategies for the 21st century, *Planning Theory and Practice*, 5(4), pp. 419–436. doi: [10.1080/1464935042000293170](https://doi.org/10.1080/1464935042000293170).
- Jacobs, J. (1961) *The Death and Life of Great American Cities* (New York: Random House).
- Keating, W. D. & Krumholz, N. (1991) Downtown plans of the 1980s: The case for more equity in the 1990s, *Journal of the American Planning Association*, 57(2), pp. 136–152. doi: [10.1080/01944369108975483](https://doi.org/10.1080/01944369108975483).
- Keating, W. D., Krumholz, N. & Perry, D. C. (Eds) (1995) *Cleveland: A Metropolitan Reader* (Kent, OH: Kent State University Press).
- Koebel, C. T., Lang, R. E. & Danielsen, K. A. (2004) *Community Acceptance of Affordable Housing* (Washington, DC: Virginia Tech, Center For Housing Research and Metropolitan Institute).
- Krumholz, N. (1982) A retrospective view of equity planning Cleveland 1969–1979, *Journal of the American Planning Association*, 48(2), pp. 163–174. doi: [10.1080/01944368208976535](https://doi.org/10.1080/01944368208976535).
- Krumholz, N. (1999) Equitable approaches to local economic development, *Policy Studies Journal*, 27(1), pp. 83–95. doi: [10.1111/j.1541-0072.1999.tb01955.x](https://doi.org/10.1111/j.1541-0072.1999.tb01955.x).
- Lake, R. W. (1996) Volunteers, NIMBYs, and environmental justice: Dilemmas of democratic practice, *Antipode*, 28(2), pp. 160–174. doi: [10.1111/j.1467-8330.1996.tb00520.x](https://doi.org/10.1111/j.1467-8330.1996.tb00520.x).
- Mallach, A. (2009) *A Decent Home: Planning, Building, and Preserving Affordable Housing* (Chicago, IL: APA Planners Press).
- Marcuse, P., Connolly, S. C. J., Novy, J., Olivo, I., Potter, C. & Steil, J. (Eds) (2009) *Searching for the Just City: Debates in Urban Theory and Practice* (London: Routledge).
- Massey, D. S., Albright, L., Casciano, R., Derickson, E. & Kinsey, D. N. (2013) *Climbing Mount Laurel: The Struggle for Affordable Housing and Social Mobility in an American Suburb* (Princeton, NJ: Princeton University Press).
- Matthews, P., Bramley, G. & Hastings, A. (2014) Homo Economicus in a big society: Understanding middle-class activism and NIMBYism towards new housing developments, *Housing, Theory and Society*. doi: [10.1080/14036096.2014.947173](https://doi.org/10.1080/14036096.2014.947173).
- Metzger, J. (1996) The theory and practice of equity planning: An annotated bibliography, *Journal of Planning Literature*, 11(1), pp. 112–126. doi: [10.1177/088541229601100106](https://doi.org/10.1177/088541229601100106).
- Nguyen, M., Basolo, V. & Tiwari, A. (2013) Opposition to affordable housing in the USA: Debate framing and the responses of local actors, *Housing, Theory and Society*, 30(2), pp. 107–130. doi: [10.1080/14036096.2012.667833](https://doi.org/10.1080/14036096.2012.667833).
- Nguyen, M., Rohe, W. M. & Cowan, S. M. (2012) Entrenched hybridity in public housing agencies in the USA, *Housing Studies*, 27(4), pp. 457–475. doi: [10.1080/02673037.2012.677998](https://doi.org/10.1080/02673037.2012.677998).
- Pendall, R. (1999) Opposition to housing: NIMBY and beyond, *Urban Affairs Review*, 35(1), pp. 112–136. doi: [10.1177/10780879922184310](https://doi.org/10.1177/10780879922184310).
- Pendall, R. (2000) Local land use regulation and the chain of exclusion, *Journal of the American Planning Association*, 66(22), pp. 215–242.
- Purcell, M. (2008) *Recapturing Democracy: Neoliberalization and the Struggle for Alternative Urban Futures* (London: Routledge).
- Rawls, J. (1971) *A Theory of Justice* (London: Oxford University Press).
- Rawls, J. (2001) *Justice as Fairness: A Restatement*, 2nd ed. (Cambridge: Harvard University Press).
- Rohe, W. & Freeman, L. (2001) Assisted housing and residential segregation: The role of race and ethnicity in the siting of assisted housing developments, *Journal of the American Planning Association*, 67(3), pp. 279–292. doi: [10.1080/01944360108976236](https://doi.org/10.1080/01944360108976236).
- Ruming, K. (2014) “It wasn’t about public housing, it was about the way it was done”: Challenging planning not people in resisting the Nation Building Economic Stimulus Plan, Australia, *Journal of Housing and the Built Environment*, 29(1), pp. 39–60. doi: [10.1007/s10901-013-9339-4](https://doi.org/10.1007/s10901-013-9339-4).
- Sandercock, L. (1997) *Towards Cosmopolis: Planning for Multicultural Cities* (Hoboken, NJ: Wiley).
- Sandercock, L. (2004) *Cosmopolis II: Mongrel Cities in the 21st Century* (New York: Continuum International Publishing Group).
- Scally, C. P. (2013) The nuances of NIMBY: Context and perceptions of affordable rental housing development, *Urban Affairs Review*, 49(5), pp. 718–747. doi: [10.1177/1078087412469341](https://doi.org/10.1177/1078087412469341).
- Scally, C. P. & Koenig, R. (2012) Beyond NIMBY and poverty deconcentration: Reframing the outcomes of affordable rental housing development, *Housing Policy Debate*, 22(3), pp. 435–461. doi: [10.1080/10511482.2012.680477](https://doi.org/10.1080/10511482.2012.680477).

- Schively, C. (2007) Understanding the NIMBY and LULU phenomena: Reassessing our knowledge base and informing future research, *Journal of Planning Literature*, 21(3), pp. 255–266. doi: [10.1177/0885412206295845](https://doi.org/10.1177/0885412206295845).
- Schwartz, A. (2011) The credit crunch and subsidized low-income housing: The UK and US experience compared, *Journal of Housing and the Built Environment*, 26(3), pp. 353–374. doi: [10.1007/s10901-011-9227-8](https://doi.org/10.1007/s10901-011-9227-8).
- Stein, D. (1992) *Winning Community Support for Land Use Projects* (Washington, DC: Urban Land Institute).
- Stover, M, Cloud, V., Garner, J., Phillips, S. & Strauss, L. (1994) *Overcoming Exclusion in Rural Communities: NIMBY Case Studies* (Washington: Housing Assistance Council).
- Sturzaker, J. (2011) Can community empowerment reduce opposition to housing? Evidence from rural England, *Planning Practice & Research*, 26(5), pp. 555–570. doi: [10.1080/02697459.2011.626722](https://doi.org/10.1080/02697459.2011.626722).
- Tighe, J. R. (2005) Strategies for the development of affordable housing in MA, *Planning Forum*, 11(21), pp. 21–49.
- Tighe, J. R. (2010) Public opinion and affordable housing: A review of the literature, *Journal of Planning Literature*, 25(1), pp. 3–17. doi: [10.1177/0885412210379974](https://doi.org/10.1177/0885412210379974).
- Tighe, J. R. (2011) Barriers to fair housing policy implementation: Finance, regulation, and public opinion, in: R. Silverman & K. Patterson (Eds) *Fair and Affordable Housing in the US: Trends, Outcomes, Future Directions*, pp. 91–124 (Leiden: Brill).
- Tighe, J. R. (2012) How race and class stereotyping shapes attitudes toward affordable housing, *Housing Studies*, 27(7), pp. 962–983. doi: [10.1080/02673037.2012.725831](https://doi.org/10.1080/02673037.2012.725831).
- United States v. City of Yonkers, et al. (1985) Civil Action #80CIV 6761 LBS (Southern District of New York, 20). Available at <http://openjurist.org/801/f2d/593/united-states-v-yonkers-board-of-education-t-ma-city-of-yonkers>
- Verba, S. & Nie, N. H. (1972) *Participation in America: Social Equality and Political Democracy* (New York: Harper & Row).
- Young, I. (1999) Residential segregation and differentiated citizenship, *Citizenship Studies*, 3(2), pp. 237–252. doi: [10.1080/13621029908420712](https://doi.org/10.1080/13621029908420712).
- Young, I. (2002) *Inclusion and Democracy* (London: Oxford University Press).
- Young, I. (2011) *Justice and the Politics of Difference* (Princeton, NJ: Princeton University Press).